

24STCV19190 24STCV19190

County: los-angeles

Division: Civil Law and Motion

Department: 511

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Case Number: 24STCV19190 Hearing Date: September 10, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September
10, 2026

CASE NAME: Ella

Mastov, et al. v. Volkswagen Group of America, Inc., et al.

CASE NO.: 24STCV19190

MOTION

FOR ATTORNEYS' FEES

MOVING PARTY: Plaintiffs

Ella Mastov and Sean Mastov

RESPONDING PARTY(S): None

REQUESTED RELIEF:

1. An

order awarding \$28,303.75 in attorneys' fees.

TENTATIVE RULING:

1. Motion

for attorneys' fees is DENIED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On August 1, 2024, Plaintiffs Ella Mastov and Sean Mastov (Plaintiffs) filed a Song-Beverly complaint against Defendants Volkswagen Group of America, Inc. (Volkswagen), and LAD-V, LLC d/b/a Volkswagen of Downtown L.A. (LAD-V) (sometimes collectively Defendants) with causes of action for: (1) breach of express warranty; (2) breach of implied warranty; (3) violation of Civ. Code § 1793.2; and (4) negligent repair.

According to the complaint, Plaintiffs leased a 2021 Volkswagen Jetta from Defendants on October 22, 2021 that manifested defects Defendants could not conform to warranty.

On September 4, 2024, Defendants filed an answer.

On October 14, 2025, Plaintiffs filed ten motions in limine.

On October 20, 2025, Defendants filed a stipulation and order to continue trial and all related dates which the court GRANTED.

On November 14, 2025, Plaintiffs filed motions to compel discovery responses. Defendants filed oppositions on December 10, 2025.

On January 5, 2026, Plaintiffs filed notice of settlement of entire case.

On January 20, 2025, Plaintiffs filed a memorandum of costs.

On March 6, 2026, the court dismissed the entire action without prejudice pursuant to CCP § 664.6 and the clerk served electronic notice to all parties that same date.

On June 11, 2026, Plaintiffs filed the instant motion for attorneys' fees. Oppositions were due on or before August 27, 2026. On September 2, 2026, Defendant filed a late opposition.

LEGAL STANDARD:

A prevailing buyer in an action under Song-Beverly “shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the Court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794(d).) By permitting buyers who prevail under Song-Beverly to recover their attorneys’ fees, “our Legislature has provided injured consumers strong encouragement to seek legal redress in a situation in which a lawsuit might not otherwise have been economically feasible.” (Murillo v. Fleetwood Enterprises, Inc. (1998) 17 Cal.4th 985, 994.)

The prevailing party has the burden of showing that the requested attorney fees are reasonable. (Robertson v. Fleetwood Travel Trailers of California Inc. (2006) 144 Cal.App.4th 785, 817.) The party seeking attorney fees “is not necessarily entitled to the compensation of the value of attorney services according to [his or her] own notion or to the full extent claimed.” (Levy v. Toyota Motor Sales, USA, Inc. (1992) 4 Cal.App.4th 807, 816.) If the “time expended or the monetary charge being made for the time expended are not reasonable under all circumstances, then the court must take this into account and award fees in a lesser amount.” (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

A calculation of attorneys’ fees for a Song-Beverly action begins with the “lodestar” approach, under which the Court fixes the lodestar at “the number of hours reasonably expended multiplied by the reasonable hourly rate.” (Margolin v. Regional Planning Com. (1982) 134 Cal.App.3d 999, 1004-1005.) “California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys’ fee award.” (Ibid.)

“It is appropriate for a trial court to reduce a fee award based on its reasonable determination that a routine, non-complex case was

overstaffed to a degree that significant inefficiencies and inflated fees resulted.” (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 39.) It is also appropriate to reduce a fee award based on “inefficient or duplicative efforts” in the billing record. (Id. at p. 38.) However, the analysis must be “reasonably specific” and cannot rely on general notions about the fairness of the fee award. (Kerkeles v. City of San Jose (2015) 243 Cal.App.4th 88, 102.) Moreover, in conducting the analysis, courts are not permitted to tie any reductions in the fee award to some proportion of the buyer’s damages recovery. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 39.)

The lodestar figure may also be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (Serrano v. Priest (1977) 20 Cal.3d 25, 49; PLCM Group, Inc. v. Drexler (2000) 22 Cal.App.4th 1084, 1095.) The factors considered in determining the modification of the lodestar include the nature and difficulty of the litigation, the amount of money involved, the skill required and employed to handle the case, the attention given, the success or failure, and other circumstances in the case. (EnPalm, LLC v. Teitler Family Trust (2008) 162 Cal. App. 4th 770, 774 (emphasis in original).) A negative modifier was appropriate when duplicative work had been performed. (Thayer v. Wells Fargo Bank, N.A. (2001) 92 Cal.App.4th 819.)

ANALYSIS:

Plaintiffs contend they are entitled to fees as the prevailing party and that the fees sought are reasonable.

Timeliness

“A notice of motion to claim attorney’s fees for services up to and including the rendition of judgment in the trial court—including attorney’s fees on an appeal before the rendition of judgment in the trial court—must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case or under rules 8.822 and

8.823 in a limited civil case.” (Cal. Rules of Court, rule 3.1702(b)(1).) Unless otherwise provided, a notice of appeal must be filed on or before the earliest of: “(A) 60 days after the superior court clerk serves on the party filing the notice of appeal a document entitled “Notice of Entry” of judgment or a filed-endorsed copy of the judgment, showing the date either was served;” (Cal. Rules of Court, rule 8.104(a)(1)(A).)

Here, the motion is untimely. On March 6, 2026, the court clerk served the dismissal of the case on the parties. (March 6, 2026 Dismissal Order and March 6, 2026 Clerk’s Certificate of Service by Electronic Service.) This started the 60-day clock on Plaintiffs’ deadline to file the motion under rule 8.104(a)(1)(A) which provides for service of the filed-endorsed copy of the judgment (here, the dismissal) showing the date it was served. Plaintiffs filed this motion well after the 60-day deadline ran in May 2026. The motion is therefore untimely.

Accordingly, the court DENIES Plaintiffs’ motion for attorneys’ fees and costs.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion for attorneys’ fees is DENIED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 10, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court